

		1048 and the court declines to exercise its discretion to make such an order. Plaintiff's claims are "are based on the defendants: (1) knowledge and combined promotion of PGT-A; (2) handling of the same genetic material; (3) combined delay in informing the Plaintiff of the laboratory error" (Opp. p. 4.; see FAC ¶¶ 9-54.) Thus, many witnesses of the underlying facts and for Plaintiff's damages will overlap between all Defendants and would have to appear at both trials. Moreover, there is insufficient prejudice regarding the Lab Defendants' claim of the jury conflating responsibilities or obligations at trial. The Labs Defendants will be able to participate in trial and object to this tactic and be able to present their own evidence of the limitations of their responsibilities and duties to Plaintiff. The claims arise from the handling and testing of four embryos and the recommendations based on those tests results, and trying the claims in a single trial will promote judicial economy. Clerk to give notice.
2	Thomas vs. City of Rancho Santa Margarita 30-2024- 01396694-CU- PO-CJC	Motion for Determination of Good Faith Settlement Defendant Andre Landscape Service, Inc.'s motion for determination of good faith settlement is DENIED. Defendant Andre Landscape Service, Inc. ("Movant") moves for an order determining its \$100,000 settlement with Plaintiff is in good faith. Defendants Rancho Santa Margarita Landscape and Recreation Corporation ("SAMLARC") and Mission Landscape Companies, Inc. ("Mission") (collectively "Non-Settling Defendants") separately oppose the motion. When determining whether a settlement is made in good faith, the court must determine whether "the amount of the settlement is within the reasonable range of the settling tortfeasor's proportional share of comparative liability for the plaintiff's injuries." (<i>Tech-Bilt, Inc. v. Woodward-Clyde & Assocs.</i> (1984) 38 Cal.3d 488, 499 (<i>Tech-Bilt</i>)). In making such a determination, the court considers the following factors: (1) a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) the financial conditions and insurance policy limits of settling defendants; and (6) the existence

	of collusion, fraud or tortious conduct aimed to injure the interests of nonsettling defendants. (<i>Id.</i> at pp. 499-500.) “[P]ractical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement. ‘[A] defendant’s settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant’s liability to be.’ ” (<i>Id.</i> at p. 499.) Plaintiff alleges while walking over a greenway along Alma Daisy in the City of Rancho Santa Margarita, her foot got caught in a latent hole causing her to fall and sustain injuries to her ankle. Plaintiff alleges the latent hole was created and maintained by defendants over a course of years creating a persistent and dangerous condition. In its first amended cross-complaint, SAMLARC alleges four causes of action for (1) implied and equitable indemnity, (2) express contractual indemnity, (3) comparative contribution, and (4) declaratory relief. Regarding express contractual indemnity, SAMLARC alleges it entered into a contract with Movant on 10/25/2022, which renewed on 9/26/2023, for the provision of landscape maintenance services in accordance with the terms and conditions of SAMLARC’s Master Agreement for Goods and/or Services, which contains an indemnity clause. Movant has not provided evidence of its proportionate liability in the moving papers or reply. It only offered a series of assumptions it bears little to no liability. Non-Settling Defendants’ evidence establishes Movant bears more than little to no liability. In the face of this conflicting evidence, the conclusory declaration of Movant’s attorney does not support a finding that Movant has no liability. (See <i>Mattco Forge, Inc. v. Arthur Young & Co.</i> (1995) 38 Cal.App.4th 1337, 1351 [settling party did not offer any evidence regarding its proportionate liability, only “a series of questionable assumptions” to show settlement amount reasonable].) Regarding allocation of settlement proceeds, while Movant indicates the settlement amount can be allocated to economic and non-economic damages in equal share, Movant fails to provide any evidentiary basis supporting the valuation of Plaintiff’s claims or SAMLARC’s contractual indemnity rights, or explanation regarding
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		how the settlement accounts for the distinct theories of liability asserted against the various parties. Lastly, Movant fails to address its financial conditions and insurance coverage other than to state they were not factors in the settlement. However, they remain <i>Tech-Bilt</i> factors the court must evaluate to make a good faith determination. Movant to give notice.
3	Matthew P. Wade, in his capacity as Trustee of the ML Wade Family Trust under the provisions of a trust agreement dated September 12, 2013, vs. Scott English Plumbing Inc. 30-2024-01448700-CU-BC-CJC	Motion for Leave to Intervene Non-party AzGuard Insurance Company's motion for leave to intervene is DENIED as it has not included a proposed complaint-in-intervention along with its motion. (Code Civ. Proc., § 387, subd. (c).) While AzGuard references a proposed complaint-in-intervention attached as Exhibit D to the Shapiro Declaration (ROA 70, Ntc. of Mtn. at 2:1-3), the declaration does not include an Exhibit D or otherwise attach a copy of the proposed pleading. (ROA 66.) Clerk to give notice.
4	Holcomb vs. Aliso Villa Condominium Association 30-2026-01559179-CU-NP-CJC	Motion For An Order Declaring Plaintiff Scott Palmer Holcomb a Vexatious Litigant and Requiring Plaintiff to Furnish Security of \$200,000 The motion for order deeming Plaintiff Scott Palmer Holcomb a vexatious litigant and requiring Plaintiff to furnish security of \$200,000 by Defendant Aliso Villas Condominium Association and Total Property Management, Inc. is CONTINUED to 9/4/2026 at 10:00 a.m. Volumes 1-2 of Defendants' Requests for Judicial Notice appear to include Exhibits 1-24, although Volume 2 is not indexed with pdf exhibit numbers to make it easily searchable by the Court. However, Volumes 3 and 4 of Defendants' Request for Judicial Notice do not contain any of the remaining exhibits 25-39 – they merely contain declarations describing the exhibits. Defendants are ORDERED to file a complete amended compendium of exhibits Volumes 3-4, which should include pdf documents that are text-searchable and indexed by exhibit number, similar to Volume 1 of Defendants' exhibits.